

W012666-050426 - California Public Records Request

Message History (3)

On 5/4/2026 5:34:01 PM, Brian C wrote:

Please replace item 8 with: "Records reflecting any internal review of SOP 205.5.1 audit-process compliance the Department is conducting, has conducted, or has formally initiated — including scoping documents, tasking memoranda, status updates, and corrective action plans. This item may be answered jointly with item 7."

Items 1–7 and 9 stand as filed.

On 5/4/2026 2:16:40 AM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/4/2026 and given the reference number **W012666-050426** for tracking purposes.

Record(s) Requested: Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context

SOP 205 has, in versions produced under W012198-022326, included quarterly operator audit requirements since at least October 25, 2019, and Flock-specific end-user audit requirements since at least February 10, 2021. SOP 205.5.1 requires quarterly operator audits of all ALPR platforms named in SOP 205 (Flock, Vigilant, BOSS, PIPS, NCRIC) submitted to the Support Services Captain, and quarterly end-user audits including review of search justifications and case-number entries also submitted to the Support Services Captain.

These requirements are distinct from Policy 463.10 (added to Policy 463 December 22, 2025), which establishes monthly audits of internal ALPR users and quarterly audits of external CA public agency

users, both addressed to the Chief of Police. SOP 205.5.1 specifies a different recipient (Support Services Captain), broader platform scope (all five ALPR platforms in SOP 205), and additional end-user audit criteria (search-justification and case-number review).

SMPD has stated under W012129-020926 that it no longer actively uses Vigilant, BOSS, or PIPS. SOP 205.5.1's all-five-platform scope obligation applies regardless of current active use, since a decommissioned platform may retain historical SMPD data, retain user accounts with persistent access to that data, or remain accessible to SMPD personnel reviewing legacy records.

Policy 463 and SOP 205.5.1 establish distinct audit obligations — different recipients, scope, and criteria — each producing distinct records. This request is for SOP 205.5.1 records only; Policy 463 records are sought separately.

Background only: in response to W012160-021226 (closed 2026-02-23), which requested SOP 205 audit records from 2020 through 2025, SMPD responded that "a good faith and diligent search yielded no records responsive to your request." In response to W012461-040226 (closed 2026-04-08), SMPD responded "We have no additional records" when asked to confirm that no records exist matching the distinct requirements of SOP 205.5.1. Item 4 of W012461, requesting NCRIC end-user audit records, was answered "No responsive records." Together, these prior responses establish that no SOP 205.5.1 audits had been produced as of April 8, 2026. This request seeks any SOP 205.5.1 records that may exist now.

Records requested — covering the period from October 25, 2019 (earliest date SOP 205 mandated quarterly operator audits, per SOP 205 versions produced under W012198-022326) through the date of production:

1. Any quarterly operator audit records produced under SOP 205.5.1, submitted to the Support Services Captain — including audits covering platforms other than Flock (Vigilant, BOSS, PIPS, or NCRIC), and any audit confirming the decommissioned status of platforms SMPD has stated it no longer uses (Vigilant, BOSS, PIPS).
2. Any quarterly end-user audit records produced under SOP 205.5.1, submitted to the Support Services Captain — including review of search justifications and case-number entries as specified in SOP 205.5.1.
3. Any end-user audit records for the NCRIC platform produced under SOP 205.5.1, including any audit of SMPD's data sharing with NCRIC via the Flock network.
4. Any platform exports, search logs, user-activity reports, or other records the auditor reviewed during the audits being requested in items 1–3 to assess access, search reasons, and compliance.
5. Any records produced, created, generated, or captured by the auditor during the conduct of any SOP 205.5.1 audits being requested in items 1–3 — including review notes, screenshots, intermediate query results, draft memoranda, working calculations, or any other records reflecting the audit's review process.
6. Any internal SMPD communications regarding SOP 205.5.1 audit findings, scope, methodology,

compliance status, or whether SOP 205.5.1 audits have been or will be conducted, from the earliest such communication through the date of production.

7. Any internal records — other than peace officer personnel records exempt under Penal Code §§ 832.7–832.8 — reflecting SMPD's institutional response to the SOP 205.5.1 audit obligation, including memoranda directing that SOP 205.5.1 audits be performed, internal reviews or assessments of SOP 205.5.1 compliance status, action items from management meetings addressing the audit obligation, or written communications acknowledging that the audit obligation has not been met.

8. The Department policy, general order, or other written framework governing disciplinary action, accountability, or corrective measures applicable when a department member or designee fails to perform duties required by Department policy or Standard Operating Procedure — including any progressive discipline policy, accountability framework, or corrective-action procedure that would apply to non-performance of the audit duties assigned by SOP 205.5.1.

9. Any records reflecting proposed, draft, or implemented changes to SOP 205.5.1's audit requirements — including any draft revisions, amendments, internal proposals to amend SOP 205, or memoranda discussing whether SOP 205.5.1's requirements should be modified.

If no records are located for any individual item, please respond to that item separately and continue processing the remaining items.

If any portion is denied, please:

1. provide specific exemption citations per Gov. Code § 7922.540;
2. for any "no responsive records" response to items 1, 2, or 3, please confirm whether SMPD has, since SOP 205.5.1's audit requirements took effect, produced any audit records matching its distinct requirements (recipient: Support Services Captain; scope: all five ALPR platforms; end-user audit criteria: search-justification and case-number review); and if so, identify the documenting records by date;
3. for any response asserting that SOP 205.5.1's requirements are satisfied by audits produced under Policy 463 or any other policy, please identify the specific elements of those audits that satisfy: (a) the Support Services Captain recipient requirement; (b) the all-five-platform scope requirement (including platforms SMPD has stated it no longer actively uses, where an audit may still be required to confirm absence of residual user accounts, accessors of historical data, or persistent SMPD data); and (c) the end-user search-justification and case-number review requirement; and
4. for any denial of items 4 or 5 based in whole or in part on Gov. Code § 7923.600, Civil Code § 1798.90.55(b), or any other exemption applicable to portions of the responsive records, please confirm that SMPD performed the segregability analysis required by Gov. Code § 7922.525(b) and produce any reasonably segregable non-exempt portion. For each record category where SMPD concludes no segregable non-exempt portion exists, please identify the specific basis for that conclusion. Redaction of plate numbers, vehicle data, individual identifiers, or other potentially exempt content is acceptable; the producible non-exempt portions of items 4 and 5 include at minimum administrative metadata such as

search IDs, timestamps, offense-type categories, and indicators of whether required justification fields were populated.

Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/4/2026 2:16:37 AM, Brian C wrote:

Request Created on Public Portal